



POLICE DEPARTMENT

April 16, 2008

MEMORANDUM FOR: Police Commissioner

Re: Detective Francis Ortiz
Tax Registry No. 895812
Detective Bureau
Disciplinary Case No. 82888/07

The above-named member of the Department appeared before me on December 13, 2007, charged with the following:

1. Said Detective Francis Ortiz, while assigned to Bronx Robbery Squad, on or about January 5, 2007, having been at the scene of an unusual police occurrence, did thereafter fail and neglect to remain at the scene of the incident. (As amended)

P.G. 212-32, Page 1, Paragraph 1 – DUTIES AND RESPONSIBILITIES

2. Said Detective Francis Ortiz, while assigned to Bronx Robbery Squad, on or about January 5, 2007, having been at the scene of an unusual police occurrence, did thereafter fail and neglect to request the response of a patrol supervisor, precinct of occurrence, as required. (As amended)

P.G. 212-32, Page 1, Paragraph 2 – DUTIES AND RESPONSIBILITIES

The Department was represented by David Green, Esq., Department Advocate's Office, and the Respondent was represented by John Grimes, Esq.

The Respondent, through his counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, has been found Guilty as charged.

EVIDENCE IN MITIGATIONThe Respondent

The Respondent is an 18 year member of the Department currently assigned to the Counter Terrorism Unit. The Respondent testified that on the morning of January 5, 2007, he was sleeping at the residence of [REDACTED] his girlfriend, when "I heard a commotion going on, so I got up from the bed and they pointed a gun to my face. They said, 'Don't move or I will kill you.' He said 'Get on the bed.' He proceeded to put me on the bed and he put the gun right behind me."

The Respondent said that he understood the gunman, who was pointing the gun to his neck, when he said in Spanish, "We are here for the money for real estate." He said that the gunman then tied his hands to the headboard with a cord and "took some type of hanger and started tying [his] legs. He stated that the male "then went to my pants and went through my wallet and said, 'Oh, I know where you live, I know the area. Is this your family? If you tell the cops or do anything, I am going to kill your family and kill you and I know the area.'" The Respondent noted that he had his driver's license and his daughter's picture with her school information in his wallet. While his police ID was in his jacket, his firearm was always kept in his locker.

The gunman then placed a pillow on his face, but he "could see a little" and saw the gunman's accomplice's profile and thought the guy looked familiar, "from one of my cases." The gunman threatened "I am going to kill you if [REDACTED] don't give me the

money.” The Respondent said that he thought to himself “If I get out from this, the first thing I am going to do is see my daughter, make sure she is okay.” The Respondent added that he was hit in the side with the gun before he was ordered on to the bed. After some time passed, he heard someone say “let’s go, [REDACTED]” and the perpetrators left the scene.

The Respondent testified that he and [REDACTED] were able to remove their ties and he “got dressed real quick” and told [REDACTED] “Call 911. I’m going to see which way they went.” As he rushed downstairs he saw one of the neighbors come upstairs. The Respondent said “I went downstairs. I looked left and right to look for a plate or something. I got to my car and I drove to the intersection to see if I could see them, maybe they are stopped at the light or something. I drove down to Grand Concourse, down to Jerome, back and forth. After a few minutes I went back to [REDACTED]’s residence. I didn’t see no cops there, so I said, ‘Should I stay here or go to my family?’”

The Respondent used three street maps of the Bronx [Respondent’s Exhibit (RX) A]: Two showed the vicinity of [REDACTED]’s residence on [REDACTED], and one showed the vicinity of the Respondent’s residence at [REDACTED]. The Respondent pointed out the route he took from where the crime took place. The route that he took was [REDACTED] Street to the Grand Concourse, to [REDACTED] Avenue, [REDACTED] Avenue, where he looked around and at the building where he started and “Since nobody was there, I went down to Webster Avenue, down the other side, and I couldn’t see them. I went both ways. I went back to [REDACTED] one more time. I was thinking should I stay there or check on my family. I figured let me go to my residence.” From there, the Respondent said he went to his mother’s house, where he lives with his mother. He stated “When I got there,

I started making a phone call to see where my daughter was at... He added that he "used both, cell phone and landline. The cell phone wasn't working properly. It keeps turning off. Every time I put it on, make a phone call, it shuts off. It's like almost damaged. That's why I called from my house phone." The Respondent said he called his daughter's mother, [REDACTED] and then called his sister and brother in an attempt to locate his mother and his daughter, to no avail.

From his mother's house the Respondent drove to [REDACTED] where [REDACTED] lives. "I went there with the intention to change the locks, because I did take some locks from my house to change it. From there, nobody was home, I went to her [REDACTED] sister's house, [REDACTED]...I went there, nobody was there, I couldn't get into the door. So then I believe I called again and I couldn't get through on the cell phone...I was calling [REDACTED] to see if she was home. Nobody was home...I didn't know if during that time there was school. I stopped by the school. I think it was like two or three [o'] clock. I am not sure what time it was. I went over there. There was nobody there."

The Respondent testified that he spoke to the building super at the [REDACTED] address and was told that [REDACTED] went shopping. He decided to wait outside for her to come back, and that two or three hours had transpired. He said "Remember, after I was there the first time, I went back home again to make sure they didn't go over there. At that time I didn't know if my other set of keys -- I couldn't find it. Eventually I found it in the car. I didn't know who was there. I said if I am here maybe they are going to go there. I went back and forth. I went to the [REDACTED] address again." He stated that he "ended up changing the locks on my mom's house...I had to. I made all the phone calls.

Finally I spoke to my brother and said if my mom comes, tell her not to leave the place, don't go home. I don't want anybody to go home."

The Respondent stated that he went back to [REDACTED] address and "finally found my daughter" and [REDACTED]. He told [REDACTED] "let's go." I was trying to take them to [REDACTED] [REDACTED] to my mom's house¹...I didn't tell her what happened because I don't want to get her worried, or my daughter." The Respondent stated that "It took me one or two hours with them. I couldn't leave them there because I didn't know if this guy is going to do something. So I took them with me. And then finally I went back to my mom's house."

While he was at his residence, his partner Steven Hernandez arrived inquiring "Frankie, are you all right? Something happen?" The Respondent answered "I wanted to make sure that [REDACTED] and my daughter was okay. I wanted to get them somewhere before I go to the precinct and report what happened." The Respondent said that Hernandez followed him to [REDACTED] sister's home at [REDACTED] where he left his family members and then headed to the 44 Precinct to report the incident. "I explained to them I was going to report it, I wanted to make sure they were safe first. I told the Captain, 'I am a senior investigator, I know what I did, but my family comes first.'"

The Respondent testified that he had a previous incident. "They went to my house and shot my car seven times, so I was very worried. Luckily I didn't have to go to [REDACTED] because I would have been more delayed if I went to [REDACTED]"

The Respondent reiterated that his main concern that day was for his family. "I was very stressed. Usually I am not that way. At one point I was going to go to the

¹ The Respondent previously testified that he lives with his mother on [REDACTED] and that his sister lives in [REDACTED].

hospital. Nobody called the ambulance for me. I ended up going to the hospital at one o'clock in the morning. My partner took me to the hospital. I had a headache, I was stressed. I didn't know what I was doing. I was very, very stressful. I thought I was going to die. I said I want to see my daughter first, that's the first thing that came to my mind."

On cross-examination, the Respondent testified that he had been dating [REDACTED] [REDACTED] for approximately two to three years, "on and off."

The Respondent acknowledged that he kept his driver's license in his wallet, along with a photograph of his daughter and some contact information for his daughter. He stated that his Department issued shield and identification card were in his jacket which was in [REDACTED]'s apartment at the time of the occurrence.

The Respondent was asked if the robbers indicated that they knew he was a police officer and he replied "I hope not, no. He stated that when the male said in Spanish, "This guy looks like a cop" the Respondent told him "No I am not a cop." He added "I know they were talking on the walkie-talkie. Either they said: There is a cop in the area or he looks like a cop. I don't know which he said. They did mention something about a cop." He also said that he heard the robbers ask "'Where do you keep the money' in Spanish." He denied he knew what money they were referring to.

When asked "Did [REDACTED] keep money in her apartment?" the Respondent answered "Yes...I don't know how much money... Usually at the beginning of the month, she keeps her mortgage, rent to pay the mortgage, usually it's cash, yes." He was asked again "And you have no idea how much cash that would be?" and again he answered "No."

The Respondent stated that at one point he found out that someone had broken into [REDACTED]'s old apartment. He denied that [REDACTED] keeps cash in her apartment at the end of the month, but she did so at the beginning.

The Respondent stated that he did not know how robbers took the money out of the apartment because he could not see them leave with the pillow over his face. When questioned about being able to make out the profile of one of the two men while he had a pillow over his face, he said he had a limited view.

The Respondent acknowledged that at the time of the incident he was assigned to the Bronx Robbery Squad and the individual that he could see looked like a person from one of his cases. When asked "Were you actually working on a case where the alleged perpetrator looked like the person who was committing this robbery?" He answered "I had a few cases that [had] similar" features. He added "Not as a pattern, just similar features." When asked "Did they also involve home invasions?" The Respondent replied "Bronx Robbery is home invasions."

The Respondent described the features of the males that he observed from this incident as "It was a male, one was a male – the guy who pointed the gun at me, he was a male black based on his accent, he was Dominican, he was dark-skinned, eighteen years old. And the second guy, when he was leaning down, went through the drawers, covered my face with the pillow, was a male, also Dominican, lighter, older guy, maybe in the forties. And those were the guys.

The Respondent testified that "the first guy, the guy that pointed a gun at me is the guy that had a videotape – I have photos, videotape that was very similar. He had a baseball hat on the same way." He acknowledged the guy in [REDACTED]'s apartment also wore

a baseball cap. He could not recall anything else they were wearing or if they were wearing gloves during the robbery. When asked if he had a chance to see either of their hands, he answered "When he was tying me." When asked "When he was tying you, was he wearing gloves or could you see their bare hands?" He answered "I don't remember. He was tying me with a cord. I didn't get too many details." The Respondent stated that he was able to determine the lightness or darkness of the skin color because he saw the perpetrator's face.

The Respondent acknowledged that he heard one of the two males say to the other, "Let's go, [REDACTED]." He said this was in Spanish, but he did not know who said it. "I heard the name. I was looking for anything they said so I could use it in an investigation. I was trying to remember anything that I could identify these guys."

The Respondent stated that after he and [REDACTED] untied themselves, he said "[REDACTED], call 911. I am going to go after these guys." While he did not call 911, he told [REDACTED] to make the call. He added that "My main concern was to go out there and get a plate or something." He stated that "Not even a minute" had passed between the time of the perpetrators leaving the apartment and him leaving the apartment to look for them, even though he was not armed.

The Respondent said as he was running downstairs he told a couple of neighbors "Take care of [REDACTED]" and "Make sure [REDACTED] is okay." He said "I came down, looked left, looked right. Then I went into my car and I tried to go in every direction." He said that the nearest subway station is Grand Concourse, maybe seven blocks from [REDACTED]'s address. When asked if he knew if the robbers got away in a car or some other means of transportation he replied "No. I was looking for them to see if they were walking first or

in a car. At the same time I was driving, I was looking left, right. I was looking for them, looking for a car, looking for an RMP." He denied he saw any RMP (Radio Motor Patrol vehicle).

The Respondent said his cell phone was "in my other pocket." He stated that he did not call 911 or the 44 Precinct with his cell phone, nor did he in any way try to get in touch with members of the Department. Nor did he call his partner with his cell phone, or looked for a pay phone to make any of those calls. When he could not find either of the robbers on the street, he drove back to [REDACTED]'s apartment and drove by to see if the cops were there. He did not know if [REDACTED] called 911 because he "never spoke to [REDACTED] [He] drove by to see if any RMPs went there yet." He also did not know if the robbers were hiding somewhere in the building and were going back to the apartment. When asked if he ever did anything at all to make sure [REDACTED] was safe, he said "I told the neighbor to go take care of her....When I was going downstairs, I said to [REDACTED] 'Call 911.' She opened the door like she was going to the neighbor...They all know [REDACTED] there...It was a female...Her same age."

The Respondent acknowledged that he drove by [REDACTED]'s apartment, that he didn't get out of the car to go back upstairs, that he then decided to go and take care of his family, that at the time he was confused, stressed, and did not know what he was doing, but that he knew that his family came first, that he spent several hours going from one residence, contacting another residence, looking for his family, trying to find his daughter, trying to get in touch with [REDACTED] and his mother and changing locks.

The Respondent denied that he was aware that it took approximately seven hours from the time that this robbery occurred to the time Hernandez actually came to him.

He said "I know time went so fast." He stated he now knows that the robbery occurred around twelve o'clock in the afternoon, but at that time he did not know. When asked what time he finally met up with Hernandez he said "It was later on during the day...Could be like after I came back with my daughter. It had to be two, three hours after that." He agreed that it took him a few hours to find his daughter.

When asked if he contacted [REDACTED] between the time the robbery took place – during that entire day, after he left [REDACTED]'s apartment, he said "No, I called her a few times. I called her house. It couldn't go through. Then I called her cell phone. It couldn't go through...I couldn't reach her." When asked if it was fair to say that during that entire day, once he left [REDACTED]'s apartment, he did not know if [REDACTED] was safe, he said "I was assuming she was safe...I didn't know."

The Respondent denied that he ever attempted to contact the Department from the moment he left [REDACTED]'s apartment until Hernandez came to him later that day. He stated that his cell phone was damaged and while he was at several different residences during the course of the day where he had access to a telephone, he did not use any of those telephones to call [REDACTED] or the Department.

The Respondent stated that he drove from the Bronx to Manhattan and from Manhattan to the Bronx, and denied ever driving past any other precincts. He said "I probably drove by, but I didn't stop." He said he did not remember if he ever saw any RMPs during the course of his travels that day.

The Respondent acknowledged that he did not tell [REDACTED] about the robbery because he did not want her to worry about him. He denied that he did not tell [REDACTED] about what happened because he did not want [REDACTED] to know about [REDACTED]. He explained, "No it had

nothing to do with [REDACTED] Me and [REDACTED] were just friends.” He stated that his relationship with [REDACTED] was “not her [REDACTED]’s business” and he denied that that was another one of the reasons that he did not tell [REDACTED] about the robbery. He added that not telling [REDACTED] about his relationship with [REDACTED] “never went through my mind.”

The Respondent said that when he told [REDACTED] to call 911, he assumed that the robbery was reported. He was not present when she actually made the call and he did not know if she actually called 911 or if the robbery had been reported, or if the description of the perpetrators had been given to the police. With regard to the property taken during the robbery he stated “Later on I found out they took some jewelry. She [REDACTED] said, ‘Take this jewelry,’ so they could leave the apartment...I was never formally interviewed by them [the police], but according to [REDACTED] she said she gave a description [to the police] of the jewelry and what happened.”

The Respondent stated that Hernandez found him at his mom’s house, and he said to the Respondent “Frankie, they are looking for you,” and “Are you okay?” The Respondent replied “Yeah...The guy hit me with the gun. I got my family, my daughter’s downstairs. I am looking for a safe place for them to stay. As soon as I finish putting them in a safe place, I am going to the precinct, [REDACTED] is probably over there, and I will report it.”

The Respondent stated that when he went to the 44 Precinct, he found out that they knew about the robbery because [REDACTED] had called the police. He said “I learned that [REDACTED] they responded to the location and [REDACTED] was okay and [REDACTED] was in the room for a few hours. They were interviewing her. He acknowledged that it was [REDACTED] who informed the police, at the 44 Precinct, that he had been present in her apartment when

the robbery occurred. He was also not aware that she had reported the robbery to the police until he learned about it hours later that day. He also denied that if Hernandez had not come to him, he would not have reported the incident to the police.”

Upon questioning from the Court, the Respondent acknowledged that [REDACTED] ultimately informed the Department that he was in her apartment, that she ultimately told them that he was a police officer, and that that was how the Detective knew to come and talk to him.

On re-direct examination, the Respondent acknowledged that he went to the residence of [REDACTED] and her sister, but he could not get in because there were double-locked doors so he couldn't get in the apartment. He further claimed that there was no way he could have made a phone call from either one of those locations.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on July 5, 1989. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent plead guilty to failing to remain at the scene of an unusual police occurrence, the armed robbery of his girlfriend's home, and failing to request the response of a patrol supervisor for that incident. The Department recommended, as a penalty the forfeiture of 30 vacation days and placement on one year dismissal probation.

The Respondent elected, as part of his plea, to give testimony in possible mitigation of the Department's recommended penalty.

The Respondent testified that on January 5, 2007, he along with his girlfriend [REDACTED] were the victims of a home invasion robbery at her residence in the [REDACTED]. He further claims that his wallet containing a photograph and identification of his daughter and his driver's license, among other things was taken by the robbers who threatened him and his family if he reported the matter to the police. He also claims that he was tied up.

Once the robbers left he and [REDACTED] were able to remove their ties and he told [REDACTED] to call 911. After the Respondent left the scene he claims that he then engaged in a series of activities the purpose of which initially was to catch the criminals and then turned toward protecting his family. Roughly seven hours went by before he finally reported the matter to the Department. He claims he tried to call Jenny during this period of time but could not get through. He further claims he could not report the matter to the Department because his cell phone worked intermittently.

This Court finds the Respondent's account of events not credible. Among other things, his odyssey through the Bronx and Manhattan included a number of stops and times when he simply waited, such as at [REDACTED]'s home and his daughter's school. During these periods of time he could have been in touch with people who could have given him access to a working phone. Instead, he claims to have attempted to make calls with a defective phone, but even then he did not claim to have tried to contact the Department, as common sense and Department rules dictate.

As an 18 year veteran of the Department and an experienced investigator once assigned to the Bronx Robbery Squad he had to be aware the best way to protect his family was to call his fellow officers, report the robbery and express his concern for his family. His family could then have been located and protected in a fraction of the time that he claimed it took him to do so.

This Court could understand if his first impulse was to protect his family and would see mitigating circumstances in his reaction to that impulse; for a short period of time. That is not the case here where the Respondent contacted the Department many hours after the incident and only after Hernandez went to his home in response to [REDACTED]'s 911 call.

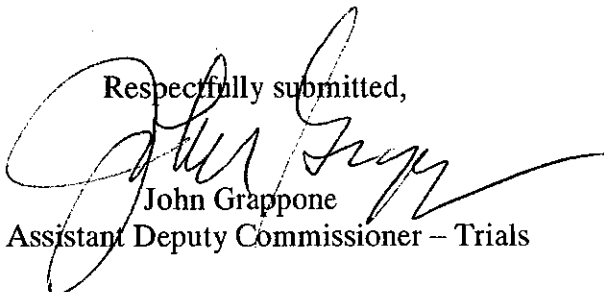
It would appear that the Respondent did not want to be part of the police report and he apparently did not expect [REDACTED] to include him in the report she made of the crime. His motive for not wanting to be involved in the robbery report while not clear is unimportant to the charges before this Court. What is clear is that the Respondent intentionally failed to remain at the scene and intentionally failed to report the matter for an extended period of time.

Based on the foregoing this Court concurs with the Department's penalty recommendation which finds support in Disciplinary Case Nos. 73960/98 and 73961/98 and 74646/99.

Accordingly I recommend that the Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at

anytime without further proceedings. I further recommend that the Respondent forfeit
30 vacation days.

Respectfully submitted,

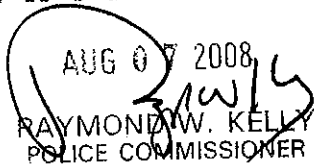


John Grappone

Assistant Deputy Commissioner – Trials

APPROVED

AUG 07 2008



RAYMOND W. KELLY
POLICE COMMISSIONER